

TENTATIVE RULING

Case: FTNT Holding LLC v. Kahn [and related cross-action]
Case No. CV-2025-1747

Hearing Date: January 15, 2026 **Department Eleven** **9:00 a.m.**

Cross-defendants FTNT Holding, LLC, Qassam Tariq, Naila Tariq, Azam Mirza and Faiza Tariq's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

The Court rules on cross-defendants' motion for judgment on the pleadings as follows:

- The motion as to the ground that the cross-complaint fails to state any specific allegations as to cross-defendants Naila Tariq, Azam Mirza and Faiza Tariq is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the cross-complaint contains specific allegations against these cross-defendants. (Cross-complaint, "General Allegations," ¶¶ 3, 9, 10, 12 – 15, 17 – 24, 34 – 36.)
- The motion as to the first cause of action for fraud – civil conspiracy is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 438; *Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.) The Court finds that the cross-complaint fails to allege facts sufficient to state this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638, 645 [the particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered]; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294, citing *Lazar, supra*, at p. 645; *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23, 35 ["To withstand demurrer, facts constituting every element of fraud must be alleged with particularity."]; Cross-complaint, General Allegations," ¶¶ 3, and 9 – 15.)
- The motion as to the second cause of action for fraudulent concealment is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the cross-complaint alleges facts sufficient to state this cause of action. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248; see *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1382, 1384 [less specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy]; Cross-complaint, General Allegations," ¶¶ 3, and 16 – 24.)
- The motion as to the third cause of action for vexatious litigation is **GRANTED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 438; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court finds that "vexatious litigation" is not a valid cause of action. (See Code Civ. Proc., § 391, subd. (b); see also *Lillebo v. Davis* (1990) 222 Cal.App.3d 1421, 1429 [denial of leave to amend is proper where a party fails to establish any basis in Constitutional or California law for a cause of action]; see generally Cross-complaint, ¶¶ 25 – 36.)

Cross-complainant Zahra Khan has 10-days from the date of the hearing to file an amended cross-complaint.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re: Ella Harper**
 Case No. PR-2025-0245

Hearing Date: **January 15, 2026** **Department Eleven** **9:00 a.m.**

The petitioner, Roger Harper, is **DIRECTED TO APPEAR** (in person or by Zoom) (Cal. Rules of Court, rule 7.952; YCR 2.4.) Pursuant to the Court’s December 4, 2025, Minute Order, the minor, Ella Harper, is excused from appearing. If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.